



File No.: EXP202305556

RESOLUTION OF THE RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by BALLESTE, S.L. (hereinafter, the recurring party) against the resolution issued by the Deputy Director General of Data Inspection, due to the vacancy of the Presidency and Deputy Presidency of the Spanish Agency for Data Protection dated February 19, 2025, and based on the following

FACTS

FIRST: On February 19, 2025, a resolution was issued by the Deputy Director General of Data Inspection, due to the vacancy of the Presidency and Deputy Presidency of the Spanish Agency for Data Protection in file EXP202305556, by virtue of which BALLESTE, S.L. was imposed a violation of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR, and a fine of 500.00 euros (FIVE HUNDRED euros).

Furthermore, it was ordered that pursuant to Article 58.2.d) of the GDPR, within one month from the date this resolution became final and enforceable, it must demonstrate that it had proceeded to reorient the video cameras, so as to avoid excessive capture of public thoroughfare. In the event that, even with the reorientation of these, the capture of public thoroughfare continued to be excessive, it would have to demonstrate the incorporation of privacy masks into the current system or, failing that, the removal of the video surveillance system.

This resolution, which was notified to the recurring party on February 25, 2025, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), and supplementarily under Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00360/2023, the following was recorded:

PROVEN FACTS

"FIRST: There is a video surveillance system on the facade of a building located at ***ADDRESS.1.

SECOND: The video surveillance system consists of 3 cameras, of which only two are operational and excessively capture the public thoroughfare.

THIRD: The responsible party for the video surveillance system is the company BALLESTE, S.L."

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THIRD: The recurring party submitted on March 20, 2025, to this Spanish Agency for Data Protection, a recourse for reconsideration, fundamentally based on:

- The violation of its right to defense due to defects in the notification of the initiation agreement.
- The viewing of the surveillance cameras is not contrary to data protection legislation. It points out that the purpose of the video surveillance system was to ensure the security of the facilities (apartments located on the ground floor of the building where they are located), as well as of the people and belongings therein.

They insist that in the previous proceedings there is our letter dated July 18, 2023 providing a screenshot of cameras 1 and 2, camera 3 was already out of service, in which it is verified that a minimal portion of the public thoroughfare was being recorded, necessary to preserve the aforementioned security purpose for people, goods, and facilities, and therefore, it was adequate, pertinent, and limited.

- The existence of an error in the appreciation of the facts leading to a lack of proportionality in the imposed sanction. Since the installed cameras comply with data protection regulations, being duly signposted and, in their case, minimally affecting the public thoroughfare.

- The application of corrective measures should replace the imposed sanction.

Subsidiarily, in case any irregularity is considered to exist, it requests the application of a corrective measure instead of the imposed sanction, in accordance with the principle of proportionality and the preventive purpose of data protection regulations.

LEGAL GROUNDS

I

Competence

The Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

In relation to the statements made by the recurring party, it has been indicated firstly by the recurring party that its right to defense has been violated due to defects in the notification of the initiation agreement of the sanctioning procedure, indicating that this constitutes “the violation of the right to defense under Article 24 of the Spanish Constitution, given that the initiation agreement was notified exclusively to the electronic address and was not opened by the recipient, understanding that the notification was rejected.”

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The claiming party continues to assert that “In matters of notifications, Article 24 of the Spanish Constitution is violated by the so-called material defenselessness that prevents the fulfillment of its purpose, which is to communicate the resolution in terms that allow maintaining the allegations or formulating the resources established in the legal system against said resolution. And this basic element must be predicated of the electronic administrative notification, which must guarantee the fundamental right to effective judicial protection.

In this regard: The Supreme Court ruling of November 16, 2016 (STS 4991/2016) recalls how the electronic format “has in no way represented, nor is it representing, a paradigm shift, as the core and the foundations on which any approach to this matter must revolve remain the same given their constitutional importance” (FJ 3º).

The Supreme Court ruling 1254/2020, of September 29, states that while electronic notification is valid, effective knowledge of the act by the recipient must be guaranteed, as well as that the Administration must exhaust the notification mechanisms provided for in the current regulations before considering an act validly notified, as established in STS 1974/2021, of May 24, and STS 2765/2020, of July 15.

In the present case, it must also be weighed that my represented party has fulfilled the minimum duty of diligence in receiving the electronic notification regarding the prior actions carried out, accessing the communications and providing the requested information, and in this direction, the diligence of the

Administration to ensure the proper success of its communication act has certain limits, one of which is the conduct of the recipient who, in the present case, shows a determined intention to accept the notification.

Therefore, even acting diligently, since the notification was not opened, the act cannot be considered validly notified, generating defenselessness, as the Administration should have exhausted the notification mechanisms provided for in the current regulations before considering an act validly notified.”

In response to such assertions, it should be indicated that on April 13, 2023, a complaint was filed with the Spanish Agency for Data Protection against the appellant for the orientation of the cameras of a video surveillance system for which it is responsible, which would be violating data protection regulations to the extent that it was capturing excessive images of public thoroughfares (sidewalk, roadway, and parked vehicles, among others), requesting the AEPD on June 23, 2023, to provide images from the field of vision of the cameras, or to proceed with their reorientation or the introduction of privacy masks.

The appellant responded to the AEPD's request on two occasions, on July 4 and 18, 2023, using electronic notification in all communications.

It is pertinent to note that the appellant is a legal entity, and as such, is obliged to communicate electronically with the AEPD, in accordance with Article 14.2 a) of the LPACAP, and that such notifications will be deemed rejected when...

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ten days have passed since it was made available as determined by Article 43 of the LPACAP.

In this regard, concerning the effects of the rejection of the notification, Article 41.5 of the LPACAP establishes that “When the interested party or their representative rejects the notification of an administrative action, it shall be recorded in the file, specifying the circumstances of the notification attempt and the means used, considering the procedure completed and continuing with the process.” Specifically, the notification of the initiation agreement was made available to the appellant on December 20, 2024, with a notice sent to the email address provided for this purpose (**EMAIL.1) regarding the availability of the initiation agreement in accordance with Article 43.1 of Royal Decree 203/2021, of March 30, which approves the Regulation for action and operation of the public sector by electronic means, where the following is indicated:

“1. In accordance with the provisions of Article 41.6 of Law 39/2015, of October 1, regardless of whether the notification is made on paper or by electronic means, the Public Administrations, public bodies, or entities of public law linked or dependent shall send the interested party or, where appropriate, their representative, a notice informing them of the availability of the notification either at the Single Enabled Electronic Address, or at the electronic headquarters or associated electronic headquarters of the Administration, or Body or Entity, or, where appropriate, at both.

The lack of this notice, which is merely informative, shall not prevent the notification from being considered fully valid.

The notice shall be sent to the electronic device or the email address that the interested party has voluntarily communicated for this purpose, or to both, in accordance with the provisions of Article 41.1 of Law 39/2015, of October 1.

The interested party is responsible for communicating to the Administration, public body, or entity of public law linked or dependent, that they have access to the designated device or email address. In the event that they cease to be operational or lose access, the interested party is obliged to inform the Administration not to send the notice through such means. The failure to comply with this obligation by the interested party shall not incur any liability for the Administration for notices sent to such non-operational means.

The notice regulated in this section shall only be made if the interested party or their representative has communicated to the Administration an electronic device or email address for this purpose.”

Thus, the initiation agreement was made available to the appellant on December 20, 2024, with a notice sent to the email address provided for this purpose, and once the period of ten calendar days had passed without the appellant accessing the initiation agreement made available to them, on December 31, 2024, it was considered

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based on the law that the notification of the initiation agreement had been validly carried out.

Therefore, we can conclude that the notification of the initiation agreement of the sanctioning procedure subject to appeal was duly carried out and no defenselessness has occurred.

Secondly, the appellant claims that the viewing of surveillance cameras is not contrary to data protection legislation.

They support their assertion by stating that “the GDPR in its Article 5.1(c) incorporates the principle of data minimization, establishing that personal data shall be adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed, which implies that the communication must be limited to the minimum necessary or essential for the intended purpose.

In the present case, we understand that the viewing would be in accordance with this principle as it does not extend beyond the images related to that purpose, which is none other than being able to exercise judicial claims arising from unlawful acts or liability, for which it is necessary to know the identity of the possible responsible party in order to direct the corresponding claim or legal action against them (Article 399 of the Civil Procedure Act or Article 277 of the Criminal Procedure Act).

In relation to the above, we cannot forget the obligation to report the commission of the crime as provided in Articles 259, 262, and 264 of the Criminal Procedure Act, which would be covered under Article 6.1(c) of the GDPR as it concerns the fulfillment of a legal obligation of the data controller, and for which it is necessary to inform the authority of any information related to the reported fact and its circumstances (Article 267 of the Criminal Procedure Act).

Therefore, regarding the necessary balancing between my client's interest in knowing the data related to the identity of the perpetrator of these acts is legitimate and must prevail over the right to data protection of the interested parties when the purpose of the data communication is to exercise the rights that correspond to them, since in the tension between both rights, the fundamental right to access justice and effective judicial protection must prevail over the right to data protection in this case, especially considering that the legislation establishes as a procedural burden the need to go to court to claim and exercise the rights of individuals, and this burden could not be fulfilled without knowing against whom the legal action must be directed.

Therefore, with the limitations regarding the principles of purpose of the transfer and minimization of processing, it must be considered that the communication of data proposed in the present case is not contrary to data protection legislation.”

This allegation, based on the purpose of exercising judicial actions, cannot justify the processing of personal data which, as is the case here, stems from an excess of capture. The possibility of a criminal act occurring does not legitimize the recording of individuals (it is recalled that the image is a data).

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personal) without a direct relationship to any incident, nor does it authorize a permanent control that directly affects the fundamental right to the protection of personal data of the interested parties.

In this context, indiscriminate and unlimited recording cannot be carried out in the name of a possible future crime, nor can it be claimed that such capture can subsequently be used to justify access to or communication of personal data. The interest in exercising legal actions must be channeled through legally established mechanisms, and it does not automatically legitimize the capture of data that is

already contrary to the principles of the GDPR.

Therefore, the allegation raised cannot be accepted, as it is based on a purpose that cannot be dissociated from the manner in which the data was obtained, which, in this case, is incompatible with data protection regulations.

In this regard, the AEPD must indicate that in the legal grounds II to IV of the resolution subject to appeal, to which we refer, a response was provided to this aspect, legally substantiating the reasons why the surveillance system subject to sanction has exceeded its purpose and is violating data protection regulations, indicating the following:

In response to such statements, the AEPD must again point out that the facts constituting the infringement are committed by the appellant as the responsible party for a surveillance system due to the excessive capture of public thoroughfare.

Such facts violate what is established in Article 5.1.c) of the GDPR, which constitutes the commission of an infringement classified in Article 83.5 a) of the GDPR, which states the following:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total global annual turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; The GDPR advocates for the imposition of fines that are appropriate, proportionate, and dissuasive, therefore, taking into account the circumstances of the case and what is provided in the aforementioned Article 83.5, the fine imposed on the appellant fully complies with the provisions of the applicable regulations.

The appellant concludes by asserting that corrective measures should replace the imposed sanction in accordance with the principle of proportionality and the preventive purpose of data protection regulations, supporting this assertion with rulings from the Supreme Court indicating “among others, STS 3461/2016, of July 21, and STS 599/2019, of February 5, has established that the Administration must assess the application of corrective measures when the infringement has not caused significant harm and when the willingness to comply with regulations by the sanctioned party is evident.”

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In this regard, the AEPD is acting under the authority granted in Article 83.2 of the GDPR, which states that “Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures provided for in Article 58, paragraph 2, letters a) to h) and j).” This provision allows for the compatibility of the imposition of measures with the sanction consisting of an administrative fine. Furthermore, it should be noted that failure to comply with the measures imposed by this body may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

III

Conclusion

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

In view of the cited provisions and others of general application, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by BALLESE, S.L. against the resolution of this Spanish Agency for Data Protection issued on February 19, 2025, in file EXP202305556.

SECOND: TO NOTIFY this resolution to BALLESE, S.L.

THIRD: To warn the sanctioned party that the imposed sanction must be made effective once this resolution is notified, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment

period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it into the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, it will proceed to its collection in the executive period.

If the date of notification falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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